

During a traffic stop, the driver and any passengers are subjected to an investigative detention, which may only last for a reasonable amount of time. Passengers can ask the officer if they are free to leave and do so if the officer agrees. Law enforcement may ask questions during this time. You cannot be punished for refusing to answer questions; however, drivers are required by law to display a driver license when requested by an officer. If you are lawfully arrested, you are also required to give your name, residence address, and date of birth. A driver or a passenger who gives law enforcement a false or fraudulent identity or false answers may be arrested. It may be to your benefit to speak to law enforcement, such as to convey the reason you may have an emergency or for the driver to provide the officer your name, address and date of birth if you do not have your driver license with you.

Law enforcement may also ask for consent to search your vehicle or person. You may grant or deny the request to search; however, if an officer has probable cause to believe that your vehicle contains evidence of a crime, it can be searched without your consent. If an officer reasonably believes that you have a weapon, the officer can conduct a pat down search of your person and the immediate area around you, including areas of your vehicle. It is unlawful to physically resist a search, but you have the right to notify the officer that you do not consent to any search.

Complaints or Concerns

If you believe an officer has acted inappropriately during a traffic stop or other encounter, you should report that conduct to the officer's superiors and follow agency guidelines for submitting complaints against officers as soon as possible. Officers will normally provide their names and badge numbers on request, when practical. Due to the overlapping of jurisdictions, drivers should make sure they identify the correct agency as well as any identifying aspects of the officer and law enforcement vehicle.

Drivers should refrain from arguing the validity of a charge during the traffic stop or detention. Signing a citation is not admitting guilt. It simply confirms your promise to pay the fine or contact the court. If you do not agree with the charge brought against you and wish to contest it, you should argue your case before a judge or request a jury trial and acquire the services of an attorney to represent you.

False Identification Offense

A person commits an offense if he/she gives a false or fictitious name to a law enforcement officer who has lawfully arrested or detained the person.

Evading arrest or detention

A person commits an offense if he intentionally flees from a person he knows is a peace officer or federal special investigator attempting to lawfully arrest or detain him/her. You will be subject to higher penalties if you use a vehicle or watercraft while evading arrest or cause injury to another person.

Road Rage

Each year, road rage, also referred to as aggressive driving, causes hundreds of injuries and deaths. Aggressive driving occurs when a driver becomes angry or irritated and as a result, fails to follow the rules of the road. An aggressive driver will intentionally aggravate or attempt to aggravate other drivers and in some cases cause bodily injury, property damage, or death to others.

Tips to Avoid Road Rage

1. Plan your trip or schedule in advance. Allow extra time in case your vehicle breaks down or you encounter traffic congestion due to a crash, road construction, or rush-hour traffic.
2. When caught in traffic, do not get angry. Try to relax and listen to music you enjoy. Remember, traffic congestion is usually temporary and you will soon be on your way.
3. Should you need to use the horn, tap the horn; do not hold down the horn. Do not confront other drivers or make obscene gestures.
4. Do not cut into another driver's lane of traffic. Properly signal your intentions to change lanes and change lanes when it is safe to do so. Turn your turn signal off after you complete your lane change.
5. Do not intentionally slow down, slam on your brakes, or speed up to keep someone from passing or entering your lane of travel.
6. Do not tailgate; follow at a safe distance.
7. Always remember to drive friendly and report aggressive driving to the local authorities.